

**BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION,  
GHAZIABAD (U.P.)**

**CONSUMER COMPLAINT NO. \_\_\_\_\_ OF 2026**

*(Complaint under Section 35 of the Consumer Protection Act, 2019)*

**IN THE MATTER OF:**

**Vikas Gandhi ...Complainant**

**VERSUS**

**ACKO General Insurance Limited ...Opposite Party**

**PROFORMA FOR FILING CONSUMER COMPLAINT**

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|----------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>1. Commission before which the complaint is filed</b>             | District Consumer Disputes Redressal Commission, Ghaziabad, Uttar Pradesh                                                                                                                                                                                                                                   |
| <b>2. Case type</b>                                                  | Consumer Complaint under Section 35 of the Consumer Protection Act, 2019                                                                                                                                                                                                                                    |
| <b>3. Name of the Complainant</b>                                    | Vikas Gandhi, S/o Shri Surendra Gandhi                                                                                                                                                                                                                                                                      |
| <b>4. Age / Date of birth; Gender</b>                                | About 53 years (DOB 09.10.1972); Male                                                                                                                                                                                                                                                                       |
| <b>5. Complete address of the Complainant</b>                        | D-20, 1st Floor, Dayanand Nagar, Ghaziabad, Uttar Pradesh – 201001                                                                                                                                                                                                                                          |
| <b>6. Mobile / E-mail</b>                                            | 9911198000 / 9amdeal@gmail.com                                                                                                                                                                                                                                                                              |
| <b>7. Complainant type; Senior Citizen; Widow</b>                    | Individual; No; Not applicable                                                                                                                                                                                                                                                                              |
| <b>8. Name and address of the Opposite Party</b>                     | ACKO General Insurance Limited, through its Managing Director / Authorised Signatory, 2nd Floor, 36/5 Hustle Hub One East, Somasandrapalya, 27th Main Road, Sector 2, HSR Layout, Bengaluru, Karnataka – 560102; E-mail: gro@acko.com; Phone: 1800 266 2256; IRDAI Regn. No. 157; CIN U66000KA2016PLC138288 |
| <b>9. Whether the Complainant is a “consumer” under Section 2(7)</b> | Yes. The Complainant purchased a health insurance policy from the Opposite Party for consideration, for personal and family use.                                                                                                                                                                            |
| <b>10. Policy No. / Claim No.</b>                                    | Policy No. ASHP202400001607 (04.11.2024 to 03.11.2025; Sum Insured Rs. 10,00,000; since renewed as ASHP202400001607R1, 04.11.2025 to 03.11.2026). Claim No. 25062100350/1                                                                                                                                   |
| <b>11. Value of the goods or services paid as consideration</b>      | Annual premium Rs. 31,065 (Policy No. ASHP202400001607)                                                                                                                                                                                                                                                     |
| <b>12. Fee payable</b>                                               | NIL. The consideration paid does not exceed Rs. 5,00,000 (Rule 7, Consumer Protection (Consumer Disputes Redressal Commissions) Rules, 2020)                                                                                                                                                                |
| <b>13. Date on which cause of action arose</b>                       | 20.06.2025 and 21.06.2025 (hospitalisation); 25.06.2025 and 26.06.2025 (rejection and repudiation of claim); continuing thereafter; 02.07.2026 (Insurance Ombudsman Award with liberty to approach any other forum); 15.07.2026 (Opposite Party's GRO reiterating repudiation)                              |
| <b>14. Whether the complaint is within limitation (Section 69)</b>   | Yes. Filed within two years of the cause of action.                                                                                                                                                                                                                                                         |
| <b>15. Territorial jurisdiction</b>                                  | Section 34(2)(d). The Complainant resides at Ghaziabad and the entire hospitalisation and treatment took place at RS Maitri Health Care, J-278, Patel Nagar 1st, Ghaziabad.                                                                                                                                 |
| <b>16. Pecuniary jurisdiction</b>                                    | Within the limits of the District Commission. Consideration paid (premium Rs. 31,065) and total claim Rs. 1,62,358 plus interest.                                                                                                                                                                           |

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| <b>17. Case category</b>                                                                                              | Insurance; Health Insurance / Medclaim; Rejection or denial of claim                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>18. Gist of the complaint</b>                                                                                      | Wrongful repudiation of a fully documented and medically necessary hospitalisation claim of Rs. 37,358 (Circumcision and Meatoplasty for tight phimosis with balanitis, meatal stenosis and UTI, performed on the day of admission), on the ground of the 2-year "Specific Illness" waiting period, while ignoring the exception "unless necessitated by malignancy" contained in the insurer's own clause, the biopsy-confirmed pre-malignant condition (BXO), and the treating Urologist's certificate. This amounts to deficiency in service (Section 2(11)) and unfair trade practice (Section 2(47)) of the Consumer Protection Act, 2019. |
| <b>19. Relief claimed</b>                                                                                             | (a) Rs. 37,358 (claim amount) with interest at 12% per annum from 26.06.2025 till realisation; (b) Rs. 1,00,000 as compensation for mental agony and harassment; (c) Rs. 25,000 towards litigation costs; and (d) any other relief deemed fit. Total: Rs. 1,62,358 plus interest.                                                                                                                                                                                                                                                                                                                                                               |
| <b>20. Earlier remedies availed</b>                                                                                   | (i) The Opposite Party's grievance mechanism (Tickets 12568674, 12582411, 12582412), all rejected; (ii) the Insurance Ombudsman, Noida (Complaint NOI-H-056-2526-0961; Award IO/NOI/A/HI/0061/2026-2027 dated 02.07.2026, dismissing the complaint but holding medical necessity undisputed and the Permanent Exclusion inapplicable, with liberty to approach any other forum); and (iii) the National Consumer Helpline (INGRAM) Grievance No. 9719631 dated 14.07.2026, in process.                                                                                                                                                          |
| <b>21. Whether any complaint on the same cause of action is pending before any other Consumer Commission or Court</b> | No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>22. Documents relied upon</b>                                                                                      | Annexures C-1 to C-14, as per Index                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>23. Advocate for the Complainant (if any)</b>                                                                      | _____ (Enrolment No. _____) / Party-in-Person                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

I declare that the particulars stated above are true and correct to my knowledge and belief.

Place: Ghaziabad

Date: \_\_\_\_ July 2026

**COMPLAINANT**

(Vikas Gandhi)